Topic 2 — Features of the Constitution

Covers syllabus (click to expand)

Salient features: Type of government | Lengthiest written | Rigidity + Flexibility | Quasi-federal | Parliamentary system (features) | FR + DPSP (राज्य के नीति निदेशक तत्व) + Duties | Secular | Single citizenship | UAF | Independent + Integrated judiciary (एकीकृत) | Emergency | Independent bodies | 3-tier (1992) | Basic Structure | Schedules glance | **Sources / borrowed featuresType of government:** Parliamentary · Democratic Republic · Quasi-federal Union | Not Presidential | Ambedkar (अम्बेडकर) federal-form/unitary-spirit fact **Federalism scholars:** Wheare (quasi-federal) | Austin (cooperative) | Morris-Jones (bargaining) | Jennings (centralising tendency) **Preamble (प्रस्तावना):** Full text | Keywords | Justice–Liberty–Equality–Fraternity counts | Original vs 42nd (42वां) | Part of Constitution | Not enforceable | Status on 26 Jan 1950 | Palkhivala identity card **Sources map:** UK (parliamentary) | USA (FR) | Ireland (DPSP) | Canada (residuary (अवशिष्ट)) | Australia (concurrent) | Germany (emergency) | Japan (Art. 21) | GOI Act 1935 (skeleton) | Indian originality **Federalism labels:** Wheare / Austin / Morris-Jones / Jennings | Cooperative vs Competitive | Federal vs Unitary features **Principles:** Rule of Law | Constitutional supremacy | Separation of powers | Checks and balances | Conventions | India vs USA/UK comparisons

Sources baked in: Laxmikanth (Salient Features / Preamble / Basic Structure), NCERT Class 11 *Indian Constitution at Work*, Drishti To-the-Point, UPPCS Prelims PYQs 2018–2025 **Weight:** ★★★ — Preamble counts/words, quasi-federal scholars, Basic Structure cases, Parliamentary A/R, federalism match lists **Last verified:** August 2026 — coaching gap-pass (type of government; parliamentary features; scholar descriptions of federation) **Current Affairs:** GST Council / NITI Aayog as cooperative–competitive federalism examples

N.1 Salient features — overview

Identity: Drawn from many sources, yet uniquely Indian in design

- **Lengthiest written** Constitution of any sovereign country.
- **Blend of rigidity and flexibility** (Article 368 plus simple-majority paths).
- **Federal system with unitary bias** — often called **quasi-federal** (K.C. Wheare).
- **Parliamentary** form of government (UK Westminster model adapted).
- **Fundamental Rights + DPSP + Fundamental Duties**.
- **Secular** State; **Universal Adult Franchise**; **Single citizenship**.
- **Independent** and **integrated** judiciary with judicial review.
- Independent constitutional bodies (Election Commission (निर्वाचन आयोग), CAG (भारत के नियंत्रक-महालेखापरीक्षक), UPSC (संघ लोक सेवा आयोग), Finance Commission (वित्त आयोग), etc.).
- Emergency provisions (strong Centre in crises).
- Three-tier government after **73rd and 74th Amendments, 1992**.

- **Basic Structure** doctrine limits amending power.
- Synthesis of **Parliamentary sovereignty** and **judicial supremacy**: Parliament makes laws; Supreme Court can review them — unlike pure UK parliamentary sovereignty or pure USA judicial supremacy.

Criticisms (coaching one-liners)

- Called a **borrowed** / "bag of borrowings" Constitution — framers adapted features to Indian conditions.
- Criticised as a **carbon copy of GOI Act 1935** — structure borrowed, but FR, adult franchise, republic and Basic Structure politics are not a mere copy.
- Called **elephantine** / lawyer's paradise — length and legal language exist for diversity and justiciability.

N.1A Type of government in India

Identity: Parliamentary · Democratic · Republic · Quasi-federal Union — **not** Presidential and **not** a pure classical federation

What India's type of government means (frame)

Dimension	India's fact	What it is not
Form of government	**Parliamentary** (Cabinet / Westminster system)	**Presidential** (USA model)
Head of State	**Republic** — elected President	Hereditary monarchy (राजतंत्र) (UK crown)
Source of authority	**Democratic** — universal adult franchise	Hereditary / limited franchise
Structure of polity	**Quasi-federal / federal with unitary bias**	Pure federation (USA) or pure unitary State
Preamble nature of State	**Sovereign Socialist Secular Democratic Republic**	"Federal Republic" (word **Federal** is **not** in Preamble)

- India borrows the **parliamentary** executive from the **UK**, but is a **Republic** with a written Constitution — so "Westminster model **adapted** to Indian conditions."
- India has **dual polity** (Union + States) and division of powers, but a **strong Centre** — hence coaching shorthand **quasi-federal**.
- **B.R. Ambedkar** (Constituent Assembly (संविधान सभा)): the Constitution is **"federal in form but unitary in spirit."**
- **Ambedkar's flexibility fact:** in **normal times** it is designed to work **federally**; in **Emergency / war** it can work **like a unitary system** — unlike a rigid federation such as the USA, which cannot switch form.
- **Ambedkar's origin fact:** Indian federation is **not** the result of an **agreement among States** — States have **no right to secede**; Parliament can alter boundaries (**Art. 3**).

> **Logic:** “Type of government” usually means **Parliamentary**; “type of polity/State structure” means **quasi-federal Union**. Do not answer “Presidential” because India has a President.

N.2 Lengthiest written Constitution

- Originally (1950): **395 Articles**, **22 Parts**, **8 Schedules**.
- Today: about **470 Articles** (with insertions), **25 Parts**, **12 Schedules** (exact count moves with amendments — fact “expanded far beyond 1950”).
- Reasons for length:
- Vast country and diversity (social, linguistic, cultural).
- **Single Constitution** for both Centre and States (unlike USA’s dual constitutional tradition).
- Detailed administrative, Emergency, FR, DPSP and Centre–State provisions.
- Heavy borrowing from **GOI Act 1935** (lengthy structural statute).
- Legalistic drafting; elaborate safeguards for minorities, SC/ST, services, etc.
- Contrast: **UK** — largely unwritten (conventions + statutes); **USA** — short written Constitution.

Schedules at a glance (high-yield)

Schedule	Content fact
I	Names / territories of States and UTs
II	Emoluments — President, Governors, Speakers, Judges, CAG, etc.
III	Forms of Oaths / Affirmations
IV	Rajya Sabha (राज्यसभा) seat allocation to States/UTs
V	Scheduled Areas and Scheduled Tribes
VI	Tribal (आदिवासी) Areas in Assam, Meghalaya (मेघालय), Tripura, Mizoram
VII	Union / State / Concurrent Lists (**Art. 246**)
VIII	Official Languages
IX	Acts protected from judicial challenge (land-reform era; limited by *I.R. Coelho*, 2007)
X	Anti-defection (**10th Schedule**)
XI	Panchayats — **29** subjects (**73rd**)
XII	Municipalities — **18** subjects (**74th**)

N.3 Blend of rigidity and flexibility

Amendment of the Constitution is mainly under **Article 368**, but not all constitutional changes use Article 368.

Type	Procedure	Examples (key facts)
Simple majority of Parliament	Like ordinary law; **outside** Art. 368	Formation/alteration of States (**Arts. 2–4**); abolition/creation of Legislative Councils (**Art. 169**); some Second Schedule / procedure matters as specified
Special majority (Art. 368)	Majority of **total membership** (सदन की कुल सदस्य संख्या का) of each House + **2/3 of members present and voting**	Many FR/DPSP/institutional provisions
Special majority + State ratification	Special majority in Parliament + ratification by **half of State legislatures**	Federal provisions: election of President; extent of executive power Union/States; SC/HC; distribution of legislative powers; representation of States in Parliament; Art. 368 itself

- Hence India is **neither** as rigid as the USA **nor** as flexible as the UK.
- **Trap:** Changing State boundaries (Art. 3) needs only Parliament's simple majority path + State's view (not binding) — often cited as flexible/unitary tilt.

N.4 Federal system, quasi-federal nature, federal vs unitary

Nature of the Indian Union

- **Article 1:** India, that is Bharat, shall be a **Union of States** — the word "federation" is not used.
- "Indestructible Union of destructible States" — States have **no right to secede**; Parliament can alter areas/boundaries/names (**Art. 3**).
- Dual polity + dual government + division of powers = federal form; strong Centre = unitary spirit → **quasi-federal**.

Federal features

- Dual polity — Union and States.
- Written Constitution; **supremacy of the Constitution**.
- Division of powers — Union / State / Concurrent Lists (**7th Schedule**).
- Bicameralism at Centre (**Rajya Sabha** (राज्यसभा) represents States).
- Independent judiciary with **judicial review**.
- Rigid amendment procedure for federal provisions (State ratification).

Unitary / strong-Centre features

- Single Constitution for Union and States; **single citizenship**.

- Residuary powers with **Centre** (Art. 248 / Union List (संघ सूची) entry 97).
- Union List is longer/stronger; in Concurrent List conflict, **Union law prevails** (Art. 254).
- Unequal representation of States in Rajya Sabha (population-based, not equal like USA Senate).
- Centre can change State names/boundaries (**Art. 3**); States' consent is not mandatory.
- **Emergency provisions (Part XVIII)** — federal fabric becomes unitary in practice.
- **All-India Services** (IAS/IPS/IFS); Governor appointed by Centre; States' financial dependence.
- Parliament can legislate on State List (राज्य सूची) in certain cases (Arts. 249, 250, 252, 253).
- No right of States to **secede**.

Political scientists — labels and what they mean

Scholar	Label for Indian federalism	Description (coaching fact)
K.C. Wheare	**Quasi-federal** / quasi-federation	India is federal in **form** but the **strong Centre** makes it **not** a true federation like the USA.
Granville Austin	**Cooperative federalism**	Centre and States must **cooperate as partners** in nation-building; Constitution creates **cooperative, not confrontational**, federalism (*The Indian Constitution: Cornerstone of a Nation*).
Morris-Jones	**Bargaining federalism**	Centre–State relations are worked out through **political bargaining and negotiation**, not only by rigid legal division of powers.
Ivor Jennings	**Federalism with centralising tendency**	India has a **federal structure**, but power and authority show a **centralising / unitary bias** at the Union level.

Match-list quick fact (2024 PYQ pattern)

Label	Scholar
Cooperative Federalism	**Granville Austin**
Bargaining Federalism	**Morris-Jones**
Quasi Federalism	**K.C. Wheare**
Federalism with Centralising Tendency	**Ivor Jennings**

Trap: Wheare **= quasi-federal (unitary bias).** Austin **= cooperative. Do** not** swap them.

Inline PYQ — UPPCS Prelims 2019, Q102

Who said "India is a Quasi Federal State"?

A. Lord Bryce B. Ivor Jannigs C. H. J. Laski D. K. C. Wheare

Show answer

Ans: D — K. C. Wheare.

Inline PYQ — UPPCS Prelims 2020, Q126Assertion (A): Indian federalism is called 'Quasi-federal'.

Reason (R): India has an independent judiciary with power of Judicial Review.

A. Both (A) and (R) are true and (R) is the correct explanation of (A) B. Both (A) and (R) are true, but (R) is not the correct explanation of (A) C. (A) is true, but (R) is false D. (A) is false, but (R) is true

Show answer

Ans: B — Quasi-federal refers to unitary bias / strong Centre; independent judiciary is true but does **not** explain A.

Inline PYQ — UPPCS Prelims 2019, Q27

With reference to the federal system in India, which of the statements is/are correct?

1. States have no right to secede from the Union under the Constitution of India.
2. Just advocacy of secession will have the protection of freedom of expression.

Select the correct answer from the codes given below:

A. 1 only B. 2 only C. Both 1 and 2 D. Neither I nor 2

Show answer

Ans: A — 1 only.

Inline PYQ — UPPCS Prelims 2020, Q94

When was the third tier added to Indian Federal System?

A. 1990 B. 1991 C. 1992 D. 1993

Show answer

Ans: C — **1992** (73rd and 74th Constitutional Amendment Acts).

Inline PYQ — UPPCS Prelims 2024, Q128

Match List-I with List-II:

List-I A. Cooperative Federalism B. Bargaining Federalism C. Quasi Federalism D. Federalism with Centralising Tendency

List-II 1. K.C. Wheare 2. Ivor Jennings 3. Morris-Jones 4. Granville Austin

> Note: Row order in the table is **not** the answer key.

A. 2 4 3 1 B. 2 1 4 3 C. 4 3 1 2 D. 3 2 4 1

Show answer

Ans: C (4, 3, 1, 2) — Austin; Morris-Jones; Wheare; Jennings.

N.5 Parliamentary system

Identity: Cabinet / Westminster model — **Parliamentary form of government** | **Not** USA Presidential system | First developed in **UK**

Core idea

- **Nominal executive:** President (**Arts. 53, 74**).
- **Real executive:** Council of Ministers headed by the **Prime Minister** (**Arts. 74, 75**).
- The executive is **responsible to the legislature** — especially the **Lok Sabha** (**Art. 75(3)** collective responsibility).
- This **responsibility of executive to legislature** is the defining test of a parliamentary system.

Features of parliamentary government in India (teaching facts)

- **Majority / coalition (गठबंधन) rule:** The party or coalition with a **majority in the Lok Sabha** forms the government; no separate presidential election for executive power.
- **Dual executive:President** = ceremonial / constitutional head; **Prime Minister** = real head of government — unlike the USA where one person is both head of state and head of government.
- **Collective responsibility:** The **Council of Ministers** stands and falls **together**; a no-confidence (अविश्वास प्रस्ताव) motion against the government in the Lok Sabha can bring down the entire Cabinet.
- **Individual responsibility:** Each minister holds office during the **pleasure of the President**, but convention follows the PM; a minister may resign for a portfolio failure.
- **Political homogeneity:** Ministers normally belong to the **same party or coalition** as the PM — unity of policy and discipline.
- **Double membership:** Ministers are **members of Parliament** (**Art. 75(5)**) — executive drawn from legislature; fusion, not strict separation.
- **Leadership of the Prime Minister:** PM is the **keystone** of the Cabinet — appoints ministers, allocates portfolios, coordinates policy, and represents the government.
- **Dissolution (विघटन) of the Lower House:** PM can advise the President to **dissolve the Lok Sabha** and call fresh elections — flexibility absent in a fixed-term presidential executive.
- **Secrecy of Cabinet:** Cabinet proceedings are confidential by **convention** — collective deliberation before public policy is announced.
- **Official Opposition:** The largest party/coalition **not** in government is recognised as Opposition — provides alternative government and scrutiny (convention + statutory recognition (मान्यता) in some contexts).

State · sovereignty · constitutional government (quick)

- Four (चातुर्याम) elements of a **State**: population (जनसंख्या), territory, government, **sovereignty** (most important).
- Pre-1947 India lacked full sovereignty under British control, so it was not a complete State in that classical sense.
- **Constitutional government** = **limited government** — Constitution restricts State authority in favour of liberty.

- **Rule of Law** (Dicey line): limitation of arbitrary power, equality before law, liberty/civil rights — **not** "people's responsibility to government."
- Good governance features include accountability, transparency, rule of law — **not** red-tapism.
- India–UK difference: Indian Parliament is **not** sovereign like the UK; **judicial review** and Basic Structure limit it.
- Pocket veto is shared with the **USA** presidency (प्रेसीडेंसी) line; residuary powers sit with the **Centre** in India and with the **States** in the USA.

Merits / demerits (one-liners)

- **Merits:** responsible government; harmony between executive and legislature; alternative government ready; better check on fixed executive authoritarianism in theory.
- **Demerits:** unstable if hung assemblies; Cabinet dictatorship if huge majority; no strict separation of powers; harder for outside experts to become ministers.

Parliamentary vs Presidential

Point	Parliamentary (India)	Presidential (USA)
Executive	From legislature; responsible to it	Separate; fixed tenure
Head of state / govt	Dual — President + PM	Single — President
Ministers	Usually MPs	Need not be legislators
Tenure	Depends on House confidence	Fixed (impeachment rare)
Dissolution	Lok Sabha can be dissolved	House of Representatives fixed term
Separation of powers	Fusion of executive-legislature	Stricter separation
Responsibility	Collective to Lower House	Not collectively responsible to Congress (कांग्रेस)

Inline PYQ — UPPCS Prelims 2025, Q54Assertion (A): India has a parliamentary system of government.

Reason (R): In India, the executive is responsible to the legislature.

A. Both (A) and (R) are true, but (R) is not the correct explanation of (A) B. (A) is false, but (R) is true C. (A) is true, but (R) is false D. Both (A) and (R) are true and (R) is the correct explanation of (A)

Show answer

Ans: D — Responsibility of executive to legislature defines India's parliamentary system.

Inline PYQ — UPPCS Prelims 2018, Q71

The Parliamentary form of Government was first introduced in which country?

A. Great Britain (UK) B. Belgium C. France D. Switzerland

Show answer

Ans: A — Great Britain (UK).

N.6 Preamble

Identity: Philosophical key to the Constitution | Source of authority = **the people** | Inspired by **Objectives Resolution** (Nehru, 13 Dec 1946; adopted 22 Jan 1947)

Full text (present — after 42nd Amendment, 1976)

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WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a
SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity;

and to promote among them all

FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY
ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.
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Original text vs 42nd Amendment

Element	Original (26 Nov 1949 / 26 Jan 1950)	After 42nd Amendment, 1976
Nature of State	**Sovereign Democratic Republic**	**Sovereign Socialist Secular Democratic Republic**
Fraternity clause	Unity of the Nation	Unity **and integrity** of the Nation
Words added	—	**Socialist**, **Secular**, **integrity**

- Date line was always **26th day of November, 1949** (adoption) — not Republic Day.
- **Hindi Version / Vikram Samvat Date (UPPCS Trap):** The Hindi text of the Preamble specifies the adoption date as **'मिति मार्गशीर्ष शुक्ला सप्तमी, संवत् दो हज़ार छह विक्रमी' (Miti Margashirsha Shukla Saptami, Samvat 2006 Vikrami)**. This corresponds to **26 November 1949**.
- **Sovereign / Democratic / Republic** were already present — **not** added by 42nd.
- Word **Federal** is **NOT** in the Preamble (Union of States is in **Art. 1**).

Purpose / functions (one-liners)

- Declares the **source of the Constitution** — "We, the People of India" (popular sovereignty).
- States the **nature of the Indian State** — Sovereign Socialist Secular Democratic Republic.
- States the **objectives** — Justice, Liberty, Equality, Fraternity.

- N.A. Palkhivala called the Preamble the **"identity card of the Constitution."**
- **K.M. Munshi** called it the **political horoscope** of our sovereign democratic republic.
- **Pt. Thakur Das Bhargava** and many coaching notes call the Preamble the **soul** of the Constitution.
- **Subhash Kashyap:** if the Constitution is the body, the Preamble is the soul; if the Constitution is a building, the Preamble is the foundation stone.
- **Sir Alladi Krishnaswami Ayyar:** the Preamble expresses what we had thought or dreamt so long.
- Helps courts interpret ambiguous provisions; reflects Basic Structure ideals (*Kesavananda*).
- Idea of a Preamble is borrowed from the **USA**; language of the Preamble from **Australia**.

Soul / heart traps (do not swap)

Tag	Who / case	What it refers to
Soul of the Constitution	Preamble (Bhargava / Kashyap line)	Philosophical key
Heart and soul	**Ambedkar** (अम्बेडकर) on **Art. 32** (Right to Constitutional Remedies)	Not the Preamble
Political horoscope	**K.M. Munshi** on Preamble	Not Ambedkar
Identity card	**Palkhivala** on Preamble	Not Austin / Wheare
Pious / sacred document	**Ambedkar** on the Constitution as a whole	Not Munshi on Preamble

Legal status and amendability

- **Berubari Union (1960):** SC held Preamble **not** part of the Constitution (earlier view); also called it the key to the minds of the makers.
- **Golaknath (1967):** coaching notes treat the Preamble as the **core / soul** of the Constitution in that debate line — do not confuse with Basic Structure invention (*Kesavananda*).
- **Kesavananda Bharati (1973):** Preamble **is part** of the Constitution; aids interpretation; basic features reflected in Preamble.
- **S.R. Bommai (1994):** SC again treated the Preamble as part of the Constitution.
- **LIC of India (1995):** reaffirmed Preamble is part of the Constitution.
- Preamble is **non-justiciable** — **not directly enforceable** like Fundamental Rights; it has **no legal effect independently** of other parts (*IAS 2020* line).
- Preamble **can be amended** under Art. 368 (**42nd** did — only amendment of the Preamble so far) but cannot destroy **Basic Structure**.
- **42nd** Preamble words followed the **Swaran Singh Committee** recommendations line.
- Words **Federal**, **Public Welfare**, **Religious Justice** and **Economic Liberty** are **not** in the Preamble.
- Word **"People's"** is **not** in India's Preamble (China's constitution uses that style).

Meaning of key words

Word	Meaning fact
Sovereign	No external power controls India; internal + external supremacy
Socialist	Added by **42nd (1976)**; democratic socialism — mixed economy, reduce inequality
Secular	Added by **42nd (1976)**; State has no official religion; equal freedom of religion (positive secularism)
Democratic	Government by the people — based on universal adult franchise
Republic	Head of State is **elected**, not hereditary (गैर-वंशानुगत) monarch

Keyword counts (UPPCS favourite)

Ideal	Components	Count
Justice	Social, Economic, Political	**3**
Liberty	Thought, Expression, Belief, Faith, Worship	**5**
Equality	Status and Opportunity	**2**
Fraternity	Assuring dignity of the individual + unity **and integrity** of the Nation	**1** (ideal)

Order asked: Justice, Liberty, Equality, Fraternity → **3, 5, 2, 1**.

1950 status fact

- Exact constitutional status on **26 January 1950** = **Sovereign Democratic Republic** only (UPSC Prelims 2021 fact).
- **Socialist** and **Secular** enter only via **42nd Amendment, 1976**.
- Commonwealth membership does **not** curtail India's sovereignty.

Objectives elaborated elsewhere

- Preamble ideals are elaborated mainly in **Fundamental Rights**, **Directive Principles** (राज्य के नीति निदेशक तत्व), and **Fundamental Duties** (मौलिक कर्तव्य).
- **Economic justice** sits in the **Preamble** (प्रस्तावना) and in the **DPSP** (राज्य के नीति निदेशक तत्व) (e.g. Art. 38) — not mainly as a Fundamental Right label.

Inline PYQ — UPPCS Prelims 2018, Q65

How many types of justice, liberty, equality and fraternity in that order has been mentioned in the preamble of constitution of India?

A. 3, 5, 2, 1 B. 1, 3, 5, 2 C. 2, 5, 3, 1 D. 5, 2, 1, 3

Show answer

Ans: A — 3, 5, 2, 1.

Inline PYQ — UPPCS Prelims 2021, Q49

Which of the following words is NOT mentioned in the Preamble of the Constitution of India?

A. Sovereign B. Democratic C. Secular D. Federal

Show answer

Ans: D — Federal.

Inline PYQ — UPPCS Prelims 2025, Q56

Which of the following words were added to the Preamble of the Indian Constitution by the 42nd Constitutional Amendment?

1. Socialist
2. Secular
3. Sovereignty
4. Republic

A. 1 and 3 B. 3 and 4 C. 2 and 3 D. 1 and 2

Show answer

Ans: D — Socialist and Secular.

Inline PYQ — UPPCS Prelims 2019, Q107

What is the legal nature of the Preamble of the Constitution?

A. It is enforceable B. It is not enforceable C. It may be enforced in special circumstances D. None of the above

Show answer

Ans: B — Not enforceable.

N.6A Secular State, FR–DPSP–Duties triad, Emergency & independent bodies

Secular State (as a salient feature)

- Word **Secular** was added to the Preamble by the **42nd Amendment, 1976**, but secular content already existed in **Arts. 25–28** (freedom of religion) and equality clauses.
- Indian secularism is **positive / reformist** — State may intervene to remove social evils and treat all religions equally; it is **not** a wall-of-separation US clone.
- **S.R. Bommai (1994):** secularism is part of the **Basic Structure**.
- Trap: “India became secular only in 1976” — word in Preamble yes; substance older.

Fundamental Rights + DPSP + Fundamental Duties

- **FR (Part III (मौलिक अधिकार)):** justiciable; borrowed in form from the **USA**.
- **DPSP (Part IV (नीति निर्देशक)):** non-justiciable policy directives; borrowed from **Ireland**.
- **Fundamental Duties (Part IVA):** added by **42nd Amendment, 1976** (Swaran Singh Committee); USSR-model inspiration.
- Key fact: FR–DPSP harmony is part of Basic Structure (*Minerva Mills*).
- Detail lives in the FR / DPSP / Duties chapter — here only the **triad as a salient feature**.

Emergency provisions (as a salient feature)

- **Part XVIII** — National Emergency (राष्ट्रीय आपात) (**Art. 352**), State Emergency / President's Rule (**Art. 356**), Financial Emergency (वित्तीय आपात) (**Art. 360**).
- During Emergency the Centre's power expands — federal fabric becomes more **unitary** in practice.
- Source lineage often linked to **Weimar Germany** for FR-suspension idea; structural frame also from **GOI Act 1935**.
- Detail → Emergency chapter; here fact only "Emergency = strong-Centre unitary tilt".

Independent constitutional bodies

- Constitution creates bodies insulated from day-to-day executive control: **Election Commission** (निर्वाचन आयोग), **CAG**, **UPSC**, **Finance Commission** (वित्त आयोग), etc.
- Independence tools: security of tenure, fixed service conditions, charge on Consolidated Fund where provided, removal safeguards.
- Detail → Constitutional Bodies chapter; here fact only as a **salient feature**.

N.7 Basic Structure Doctrine

- Limits Parliament's amending power under **Article 368** — Parliament **cannot** abrogate / destroy the Constitution's **basic structure**.
- Propounded by SC in **Kesavananda Bharati vs State of Kerala (1973)** (13-judge bench).
- Basic Structure is **not** a closed list in the Constitution text — evolved case by case.

Illustrative elements (commonly listed)

Supremacy of the Constitution · Sovereign, democratic, republican form · Secular character · Separation of powers · Federal character · Judicial review · Free and fair elections · Rule of Law · Independence of judiciary · Harmony between FR and DPSP · Limited amending power · Unity and integrity of the nation · etc.

Case / amendment chronology (must fact)

Case / Event	Year	Holding (key fact)
Shankari Prasad vs Union of India	**1951**	Parliament can amend FR (Art. 368 includes FR)

Case / Event	Year	Holding (key fact)
Sajjan Singh vs State of Rajasthan	**1965**	Same line affirmed
Golaknath vs State of Punjab	**1967**	Parliament **cannot** amend FR (amendment = "law" under Art. 13)
24th Constitutional Amendment	**1971**	Restored power to amend any part including FR; amended Arts. 13 and 368
Kesavananda Bharati	**1973**	Can amend, but **cannot destroy Basic Structure**
Indira Nehru Gandhi vs Raj Narain	**1975**	Applied Basic Structure (free and fair elections / Rule of Law elements)
42nd Amendment	**1976**	Tried to make Art. 368 unlimited (ss. 4 and 55)
Minerva Mills vs Union of India	**1980**	Struck down unlimited amending power; judicial review and limited amendability = Basic Structure; balance FR–DPSP
Waman Rao / later cases	**1981 onwards**	Basic Structure applied to 9th Schedule (9वीं अनुसूची) post-Kesavananda, etc.
S.R. Bommai (1994)	—	Secularism as Basic Structure (also federalism / Art. 356 misuse)

Inline PYQ — UPPCS Prelims 2022, Q37

The concept 'Basic Structure of the Constitution' was propounded by the Supreme Court in the case of—

A. Kesavananda Bharati vs State of Kerala — 1973 B. Golaknath vs State of Punjab — 1967 C. Chitralekha vs State of Mysore (मैसूर) — 1964 D. Yusuf vs State of Bombay — 1954

Show answer

Ans: A

Inline PYQ — UPPCS Prelims 2020, Q120

The Supreme Court of India enunciated the doctrine of "Basic Structure of the Constitution" in

A. The Golaknath Case in 1967 B. The Keshavanand Bharati Case in 1973 C. The Shankari Prasad Case in 1951 D. The Sajjan Singh Case in 1965

Show answer

Ans: B

Inline PYQ — UPPCS Prelims 2024, Q126

Identify the correct chronological sequence:

1. Shankari Prasad vs Union of India
2. Sajjan Singh vs State of Rajasthan
3. Golaknath vs State of Punjab

4. Kesavananda Bharati vs State of Kerala

A. 1, 4, 3, 2 B. 3, 2, 1, 4 C. 1, 2, 3, 4 D. 3, 4, 2, 1

Show answer

Ans: C — 1951 → 1965 → 1967 → 1973.

Inline PYQ — UPPCS Prelims 2021, Q42

Arrange chronologically:

I. Golak Nath Case II. Kesavananda Bharti Case III. 24th Constitution Amendment Act IV. 42nd Constitution Amendment Act

A. I, III, II, IV B. I, II, III, IV C. III, I, II, IV D. III, I, IV, II

Show answer

Ans: A — 1967 → 1971 → 1973 → 1976.

N.8 Single citizenship and Universal Adult Franchise

Single citizenship

- Constitution provides **one citizenship** of India (Part II, **Arts. 5–11**).
- Contrast **USA**: dual citizenship — of the USA and of a State.
- All citizens have the same civil/political rights throughout the territory (subject to reasonable classification / special provisions).
- Details of acquisition/loss → Citizenship Act, 1955 (Citizenship topic); here fact only **single citizenship as a salient feature**.

Universal Adult Franchise

- **Article 326** — elections to Lok Sabha and State Legislative Assemblies on the basis of adult suffrage.
- Every citizen aged **18+** (earlier **21**) is entitled to vote if not disqualified.
- Voting age reduced **21** → **18** by **61st Constitutional Amendment Act, 1988** (came into force **1989**).
- No property, tax or educational qualification for voting (unlike British Indian franchise).
- Supports the **Democratic** character in the Preamble.

N.9 Independent judiciary and integrated judiciary

Independent judiciary

- Needed for constitutional supremacy, federal disputes, FR protection, Rule of Law.

- **Security of tenure** — Judges removed only by Parliamentary impeachment process (proved misbehaviour/incapacity).
- Salaries/allowances charged on **Consolidated Fund**; cannot be varied to their disadvantage after appointment (except financial emergency nuances).
- Conduct of judges is not discussed in Legislature except on a removal motion.
- Separation of judiciary from executive — **Art. 50** (DPSP).
- Power of **judicial review**; contempt jurisdiction; appointments process insulated (Collegium evolved by SC — detail in Judiciary topic).

Integrated judiciary

- **Single integrated system:** Subordinate Courts → High Courts → **Supreme Court** at the apex.
- SC = federal court + court of appeal + constitutional interpreter + writ court (Art. 32).
- High Courts are also writ courts (Art. 226) and supervisory courts.
- Contrast **USA**: dual system — federal courts and separate state courts more parallel.
- **Trap:** Integrated ≠ "only one court"; it means hierarchy under one apex, not dual unrelated systems.

N.10 Comparison with USA / UK / Canada / Ireland (basic)

Feature	India	USA	UK	Canada / Ireland notes
Form of govt	Parliamentary	Presidential	Parliamentary	Canada parliamentary
Constitution	Written, lengthy, supreme	Written, short, supreme	Unwritten + Parliamentary sovereignty	Canada written federal
Citizenship	Single	Dual (federal + state)	—	Single like Canada
Residuary powers	Centre	States	—	Centre like Canada
Federation	Strong Centre / quasi-federal	Classical dual federalism	Unitary	Canada federal
DPSP	Yes (Ireland)	No equivalent	—	Ireland source
Judicial review	Strong	Strong	Limited / different	—
Amendment	Rigid + flexible blend	Mostly rigid	Flexible (sovereignty of Parliament)	—
Rights	FR justiciable + DPSP	Bill of Rights	Common law + statutes + HRA later	—

Feature	India	USA	UK	Canada / Ireland notes
Head of State	Elected President (Republic)	Elected President	Hereditary monarch	—

N.11 Cooperative federalism and competitive federalism

Cooperative federalism

- Centre and States work together for common national goals.
- Scholar tag: **Granville Austin** (*The Indian Constitution: Cornerstone of a Nation*).
- Tools/institutions:
- **Inter-State Council** (Art. 263) — set up on Sarkaria (सरकारिया आयोग) Commission recommendation (**1990**).
- **GST Council** (जीएसटी परिषद) (Art. 279A) — shared tax decisions.
- **NITI Aayog** (नीति आयोग) (2015) — replacing Planning Commission (योजना आयोग); team India approach.
- Zonal Councils; National Development Council (historical); CSS / centrally sponsored schemes; disaster response.

Competitive federalism

- States compete for investment, infrastructure, ease of doing business, SDG/performance rankings, central incentive funds.
- Stronger after liberalisation (1991) and in the NITI Aayog era.
- **Trap:** Competitive federalism ≠ Wheare's quasi-federal; ≠ Austin's cooperative label.

> **CA note:** GST Council = flagship cooperative-federalism body; NITI Aayog indexes fuel competitive federalism.

N.12 Constitutional principles

Rule of Law

- A.V. Dicey's ideas adapted: equality before law; supremacy of law; predominance of legal spirit.
- In India: Arts. **14**, judicial review, constitutional remedies (**Art. 32/226**).
- Government must act under and according to law — no arbitrary power.
- PIL expands access to justice for weaker sections → linked to Rule of Law s.

Inline PYQ — UPPCS Prelims 2025, Q47Assertion (A): Public Interest Litigation is essential for the rule of law in India.

Reason (R): Public Interest Litigation provides effective access to justice to socially and economically weaker sections.

A. Both true, R not explanation B. A false, R true C. A true, R false D. Both true and R explains A

Show answer

Ans: D

Constitutional supremacy

- Constitution is the **highest law** of the land.
- Laws inconsistent with the Constitution are void (**Art. 13** for FR; federal distribution via Arts. 245–254).
- Differs from **Parliamentary sovereignty** (UK) — Indian Parliament is **not** sovereign in that sense.
- Basic Structure doctrine strengthens constitutional supremacy against destructive amendments.

Separation of powers

- Three organs: Legislature, Executive, Judiciary — distinct functions.
- India follows **functional separation**, **not** the rigid American model.
- Cabinet system → **fusion** of executive and legislature (ministers sit in Parliament).
- Judiciary is more separated; judicial review polices the other organs.
- **Kesavananda / later cases:** separation of powers is part of Basic Structure.

Checks and balances

- Each organ can restrain others:
- Judiciary → judicial review, writs, contempt.
- Legislature → no-confidence, impeachment, committee oversight.
- Executive → ordinances (Art. 123); but ordinances need Legislature approval.
- Complements separation; prevents concentration of power.

Constitutional conventions

- Unwritten political practices that fill gaps in the text.
- Examples: PM is leader of majority in Lok Sabha; Cabinet collective responsibility and secrecy; Leader of Opposition recognition norms; Governor's aid and advice in normal times; President's limited discretion in hung-house situations (as evolved).
- Usually **not enforceable in courts** like Articles, but politically obligatory; courts sometimes notice them.

N.13 Sources of the Indian Constitution (borrowed features)

Identity: Adapted from many constitutions and the **GOI Act 1935** — framed as an Indian document, not a foreign transplant

- Granville Austin called it a "**bag of borrowings**," but the Constituent Assembly **selected and modified** each feature for India's diversity, poverty, and plural society.
- The **GOI Act 1935** supplied the largest **structural skeleton** — lists, Governor, emergency lineage, PSC, Federal Court path — but independent India added **FR, adult franchise, republicanism, DPSP** and later **Fundamental Duties** and **Basic Structure** politics.

Country-wise source table

Feature / provision	Borrowed from	Common trap
Parliamentary government, Cabinet, Rule of Law, legislative procedure, **single citizenship**, bicameralism, writs (idea)	**UK**	Not USA for parliamentary system
Fundamental Rights, judicial review, independent judiciary, impeachment of President, removal of judges, **Vice-President**	**USA**	Not UK for FR
Directive Principles of State Policy, Presidential election method, RS nominations	**Ireland**	Not USA for DPSP
Strong-Centre federation; **residuary powers with Centre**; Centre-appointed Governor	**Canada**	**Not Australia** for residuary
Concurrent List (समवर्ती सूची); freedom of trade (पण्याध्यक्ष) & commerce; joint sitting	**Australia**	**Not Canada** for concurrent
Suspension of FR during Emergency	**Germany (Weimar)**	—
Procedure established by law (original Art. 21)	**Japan**	Not US "due process" wording
Liberty–equality–fraternity Preamble spirit	**France**	Ideals, not full structure
Lists, emergency frame, PSC, much administrative detail	**GOI Act 1935**	"Only copy of 1935" oversimplifies
Fundamental Duties (Part IVA)	**USSR** model via **42nd Amendment, 1976**	Not in original 1950 Constitution

What is distinctly Indian

- **Universal adult franchise** from the first general election (**Article 326**).
- **Quasi-federal** union with **single citizenship** and an **integrated judiciary**.
- Simultaneous **FR + DPSP** design (Duties added later).
- **Basic Structure** doctrine limiting amendment power — judicial innovation after **Kesavananda (1973)**.
- Fifth / Sixth Schedules and **Article 371** series for asymmetric federalism.

Inline PYQ — UPPCS Prelims 2021, Q54 (cross-topic fact)

Which one of the following is NOT correctly matched?

(Provisions) — (Sources)

A. Fundamental Rights – USA B. Directive Principles of State Policy – Ireland C. Residual Powers of Center – Australia D. Emergency powers - Germany

Show answer

Ans: C — Residuary powers of the Centre are borrowed from **Canada**, not Australia.

N.11 National Symbols (quick card)

Identity: Flag · Emblem · Anthem · Song (सोंग) · Calendar · Days — high-yield date and designer facts

National Flag

- Designed by **Pingali Venkayya**.
- Present design adopted by the Constituent Assembly on **22 July 1947**.
- Ratio of **length to width = 3 : 2**.
- Colours: saffron (top), white (middle), green (bottom); navy-blue **Ashoka (अशोक) Chakra** with **24 spokes** in the white band (Sarnath (सारनाथ) Lion (सिंह) Capital wheel; symbol of **justice / Dharma Chakra**).
- Flag Code of India, **2002** lists standard sizes; **600 mm × 400 mm** is **not** among them.

State Emblem

- Adaptation of the **Sarnath Lion Capital of Ashoka**.
- Adopted by the Government of India on **26 January 1950**.
- Motto **Satyameva Jayate** is from the **Mundaka Upanishad (उपनिषद्)**, written in Devanagari below the emblem.

Anthem and National Song

- **Jana Gana Mana (माना)** (Rabindranath Tagore) adopted as National Anthem on **24 January 1950**; first sung **27 December 1911** at the Calcutta Congress session (पंगु सत्र).
- Full rendition takes about **52 seconds**.
- **Vande Mataram** (from Bankim Chandra Chatterjee's *Anandamath* (आनंदमठ)) adopted as National Song on **24 January 1950**; first sung at the **1896** Congress session.

Calendar and National Days

- National Calendar is based on the **Saka** (साका) era (not Vikram); adopted **22 March 1957** with the Gregorian calendar; Chaitra is the first month.
- National Days: **15 August**, **26 January**, and **2 October** (Gandhi Jayanti).

Flora (वनस्पति) / fauna (प्राणीजात) tags (one each)

- National animal = **Tiger** (*Panthera tigris*).
- National bird = **Indian Peacock** (*Pavo cristatus*).

- National flower = **Lotus** (*Nelumbo nucifera*) — coaching default; note official notification debates separately if asked.
- National fruit = **Mango**; national tree = **Banyan**; national aquatic animal = **Ganges River Dolphin**; national river = **Ganga** (गंगा) (declared **2008**).
